

25LBCV00064 25LBCV00064

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-08-04

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Case Number: 25LBCV00064 Hearing Date: August 4, 2026 Dept: S27

Plaintiff's attorney of record, Sajdah

Golde, moves to be relieved as counsel for Plaintiff, Angelo DiMauro. Counsel declares there has been a breakdown in the attorney-client relationship that prohibits further representation. The motion is denied because it is set to be heard unreasonably close to the trial date.

The trial date in the case is 9/08/26, and the FSC is scheduled for 9/04/26, only one month after the hearing on this motion.

Unlike their clients, attorneys do

not have an absolute right to withdraw from representation at any time with or without cause. Even where grounds for termination exist, attorneys seeking to withdraw must comply with the procedures set forth in California Rule of Professional Conduct (CRPC) 3-700 and are subject to discipline for failure to do so. Where withdrawal is not mandatory, an attorney normally must continue representation on the matter undertaken. The fact the client or matter proves unpleasant or unprofitable does not excuse attorney performance. The rules have been liberally construed to protect clients. See Vann v. Shilleh (1975) 54 Cal.App.3d 192, 197; Chaleff v. Superior Court (1977) 69 Cal.App.3d 721; Ramirez v. Sturdevant (1994) 21 Cal.App.4th 904, 915.

An attorney, either with the client's consent

or the court's approval, may withdraw from a case when withdrawal can be accomplished without undue prejudice to the client's interests. A lawyer violates his or her ethical mandate by abandoning a client (Pineda v. State Bar (1989) 49 Cal.3d 753, 758 759), or by withdrawing at a critical point and thereby prejudicing the client's case. CRPC 3 700(A)(2); Vann, supra, 54 Cal.App.3d at p. 197.

Counsel is ordered to give notice.